

HOUSE No. 1128

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker and Jeffrey N. Roy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act preserving access to treatment for patients with serious mental illnesses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/16/2025</i>
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>2/5/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/7/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>2/10/2025</i>
<i>Rob Consalvo</i>	<i>14th Suffolk</i>	<i>2/20/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/24/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/11/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/11/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/7/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>4/7/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 1128

By Representatives Decker of Cambridge and Roy of Franklin, a petition (accompanied by bill, House, No. 1128) of Marjorie C. Decker, Carole A. Fiola and others relative to access to treatment for patients with serious mental illnesses. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act preserving access to treatment for patients with serious mental illnesses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 176O of the Massachusetts general laws is hereby
2 amended by inserting therein the following new definition: -

3 “Serious mental illness,” any of the following conditions, as defined by the most recent
4 edition of the Diagnostic and Statistical Manual of Mental Disorders:

5 (1) Bipolar disorders, hypomanic, manic, depressive, and mixed.

6 (2) Childhood and adolescent depression.

7 (3) Major depressive disorders, single episode or recurrent.

8 (4) Obsessive-compulsive disorders.

9 (5) Paranoid personality disorder and other psychotic disorders.

10 (6) Schizo-affective disorders, bipolar or depressive.

(7) Schizophrenia.

(8) Post-traumatic stress disorder.

SECTION 2. Section 12A of said Chapter 176O is hereby further amended by inserting after subsection (g) the following new subsection:-

(h) Notwithstanding any other provision of law, a carrier or utilization review organization shall not, with respect to a drug approved by the Food and Drug Administration for the treatment of serious mental illness, impose a prior authorization requirement, step therapy protocol, or any other protocol that could restrict or delay the dispensing of the drug.

SECTION 3. Section 8 of Chapter 118E of the Massachusetts general laws is hereby amended by inserting therein the following new definition: -

i½. “Serious mental illness”, any of the following conditions, as defined by the most recent edition of the Diagnostic and Statistical Manual of Mental Disorders:

(1) Bipolar disorders, hypomanic, manic, depressive, and mixed.

(2) Childhood and adolescent depression.

(3) Major depressive disorders, single episode or recurrent.

(4) Obsessive-compulsive disorders.

(5) Paranoid personality disorder and other psychotic disorders.

(6) Schizo-affective disorders, bipolar or depressive.

(7) Schizophrenia.

(8) Post-traumatic stress disorder.

SECTION 4. Section 51A of said chapter 118E is hereby further amended by inserting after subsection (f) the following new subsection: -

(g) Notwithstanding any other provision of law, the division or an entity with which the division contracts to provide or manage health insurance benefits shall not, with respect to a drug approved by the Food and Drug Administration for the treatment of serious mental illness, impose a prior authorization requirement, step therapy protocol, or any other protocol that could restrict or delay the dispensing of the drug.